

Court No. - 37

Case :- WRIT - C No. - 11741 of 2012

Petitioner :- Pawan Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ravindra Prakash Srivasta

Respondent Counsel :- C.S.C.,Rakesh K. Srivastava

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

On the request of Sri Rakesh Kumar Srivastava, learned counsel for the respondent, put up on 14.3.2012 as a fresh case, by which time he may obtain instructions.

Order Date :- 1.3.2012

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(Ashok Pal Singh, J.)

(Vineet Saran, J.)

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Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

As prayed by Shri Rakesh Kumar Srivastava, he is granted three weeks' time to complete the instructions. Put up on 19th March, 2012 in the additional cause list.

Order Date :- 14.3.2012

SP/

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Hon'ble Sunil Ambwani, J.

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We have heard Shri Ravindra Prakash Srivastava, learned counsel for the petitioner. Shri Rakesh Kumar Srivastava appears for Purvanchal Vidyut Vitran Nigam Ltd. and officers of the Corporation arrayed as respondent no.3. Learned Standing Counsel appears for respondent nos.1, 4 and 5.

The petitioner is challenging a demand of Rs.85,834/- vide recovery certificate dated 21.2.2012.

It is alleged that the petitioner is poor person. He has annexed the ration card to demonstrate that he is living below poverty line, working as labourer.

It is submitted that the petitioner's father died in the year 2001. He is living in house with thatched roof and is not consuming electricity after 2007, when the electricity connection was disconnected.

Shri Rakesh Kumar Srivastava, learned counsel for the Corporation states that the petitioner never informed the department about the death of his father. The house in which he is living is a pacca house with several rooms and that the petitioner has not annexed any bill by which it can be shown that he has paid any amount for consuming electricity, even upto the year 2007.

It is submitted by learned counsel for the petitioner that he has a brother, who has also inherited the property of his father and thus the bill should be shared by both of them. The petitioner states that he is ready to share of the bill.

The argument raised by the petitioner would require a fact finding enquiry to find out as to whether the electricity was consumed after the death of the petitioner's father by the petitioner or any other persons. There is no provision under the U.P. Electricity Act

or Regulations made thereunder to bifurcate the bills, amongst legal heirs. In any case there is no material to show that the bill or any part thereof relates to the period before or after the death of petitioner's father.

Be that as it may, since the petitioner is not disputing the consumption of electricity and the bill, the provisions of para 6.5 of the U.P. Electricity Supply Code, 2005 will not be attracted.

In our view in such situation the petitioner has remedy to approach the Consumer Grievance Redressal Forum under Para 7.10 of the U.P. Electricity Supply Code, 2005.

The writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 19.3.2012

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